

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008333

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: TIMOTHY ROMPEL

vs.

DEFENDANT: PRIME SKYLARK, LLC ET
AL

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendants' demurrer to the Seventh Cause of Action (Larkspur Municipal Code § 6.30.030 et seq.) is **SUSTAINED WITH LEAVE TO AMEND**. Plaintiff must plead the alleged 'just cause' deficiency and tie Defendants' conduct to an intent to obtain possession, with statutory particularity.

I. Allegations in Plaintiff's First Amended Complaint

Plaintiff Timothy Rompel alleges that he is a 75 year old disabled veteran who was a residential tenant at Unit 14 of Defendants' multi-unit property on Skylark Drive in Larkspur. Plaintiff had resided in his unit, which was under rent-control, since August 1999. In July 2024, a new tenant moved into Unit 16, located directly below Plaintiff's unit, and Plaintiff immediately began to experience the smell of smoke, vaping fumes and chemical odors entering his unit. Plaintiff sent repeated emails to Defendants documenting burning eyes, dizziness, nausea, heart irregularities, blood-pressure spikes, headaches, breathing difficulty, and ringing in his ears. He also began to experience near constant floor and wall vibrations emanating from Unit 16. Rather than enforce the no smoking policy or abate the nuisance, Defendants offered to transfer Plaintiff to an alternative unit that was less desirable, as it would have required him to go up three flights of stairs. Plaintiff alleges that it was reasonably foreseeable to Defendants that if they did not abate the nuisance of enforcing the nonsmoking policy, Plaintiff would be forced to vacate his rent-controlled home. Plaintiff was ultimately forced to vacate to protect his health and well-being. Plaintiff asserts causes of action for constructive eviction, breach of the implied warranty of habitability, nuisance, breach of the covenant of quiet enjoyment, negligence, breach of contract, violation of Larkspur Municipal Code Section 6.30.030 et seq., and violation of Civil Code Section 1950.5.

II. Procedural Deficiency

Defendants failed to comply with Code of Civil Procedure Section 430.41(a)(3), which requires that the demurring party meet and confer “in person, by telephone, or by video conference”. Defendant must address this failure to meet and confer at the hearing, should either party request appearances or contest the tentative ruling.

The Court nevertheless reminds Defendants to follow all applicable rules when filing matters with the court. (Code Civ. Proc. § 430.41(a)(4).

III. Request for Judicial Notice

Defendants’ request for judicial notice of the First Amended Complaint is granted.

IV. Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Discussion

Defendants demur to the Seventh Cause of Action for violation of Larkspur Municipal Code Section 6.30.030 et seq.

In the Seventh Cause of Action, Plaintiff alleges that Defendants’ failure to cure the dangerous conditions and reduction of housing services caused Plaintiff to abandon his rent-controlled home. Defendants attempted to recover possession of Plaintiff’s unit in a manner not permitted by the Larkspur Just Cause and Tenant Protection Ordinance (the “Ordinance”), thereby violating Section 6.30.030 et seq.

Section 6.30.030 provides: “A. Notwithstanding any other law, after a tenant has continuously and lawfully occupied a residential real property for thirty (30) days, the owner of the residential real property shall not terminate the tenancy without just cause, which shall be stated in the written notice to terminate tenancy. B. For purposes of this chapter, “just cause” includes either at-fault just cause or no-fault just cause.” “At-fault just cause” is defined in Section 6.30.040 and “no-fault just cause” is defined in Section 6.30.040.

Defendants argue that Plaintiff fails to allege a statutory violation with the requisite particularity. (See *Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 619.) The demurrer is

sustained on this basis. Plaintiff alleges in another part of his Amended Complaint that he was constructively evicted based on Defendants' failure to remedy the intolerable and dangerous conditions. (Amended Complaint, ¶¶22, 23.) While Plaintiff may believe these allegations imply that the termination of his tenancy was without just cause as that term is defined in Sections 6.30.40 and 6.30.50, this is not actually alleged. Plaintiff should also expressly tie his allegations about Defendants' conduct to Defendants' alleged intent to wrongfully obtain possession. As noted above, statutory violations must be alleged with particularity.

The Court does not address the issue of whether a constructive (as opposed to actual) eviction¹ can be the basis for liability under the Ordinance as this issue has not been adequately briefed by the parties. The parties address the issue briefly but do not cite or discuss any applicable legislative history or statutory construction principles based on the specific language of this Ordinance.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

IT IS ORDERED Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

¹ "An eviction is actual when a landlord takes direct action to physically expel the tenant from the premises. An eviction is constructive if the landlord engages in acts that render the premises unfit for occupancy for the purpose for which it was leased or deprive the tenant of the beneficial enjoyment of the premises." (*Cunningham v. Universal Underwriters* (2002) 98 Cal.App.4th 1141, 1152.)"

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008573

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: HOMETAP HEI FUND II
SPV I, A DELAWARE STATUTORY TRUST

vs.

DEFENDANT: CANDANCE CAIN
O'DENVER, ET AL

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant Stefano Schiavi filed a Demurrer on July 30, 2026, alleging that Plaintiff Hometap Fund, ending business that provides Home Equity Investments ("HEI") and other financing products to property owners, failed to properly identify the proper legal owner of 377 Ocean Parkway, Bolinas, California 94924. The pleading is unopposed.

Hearing on Defendant's demurrer is CONTINUED to October 9, 2026, at 1:30 p.m.

If the Demurrer is unopposed, it will likely be sustained. The parties must meet and confer on whether an amended complaint identifying the proper property owner will resolve the issues.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).